

Track 1 — Chapter Build Pass

MPEP §§2140s · Obviousness Under 35 U.S.C. §103

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: The Analytical Framework

Obviousness is the most fact-intensive patentability ground, and the exam tests both the legal framework (Graham factors, KSR) and the procedural requirement that examiners actually articulate reasoning rather than assert conclusions.

Rule 1: The Graham Factors (§2141)

PLAIN ENGLISH

Obviousness under §103 is assessed using the four **Graham v. John Deere** factors: (1) the scope and content of the prior art, (2) differences between the prior art and the claims, (3) the level of ordinary skill in the art, and (4) secondary considerations (objective evidence) of non-obviousness, if present. All are legal/factual determinations an examiner must walk through, not just a gut-level "this seems obvious" call.

EXAMPLE

An examiner rejecting a claim for obviousness must identify the specific prior art references (factor 1), explain exactly what's different about the claimed invention (factor 2), and articulate the assumed skill level of a hypothetical person of ordinary skill (factor 3) — a bare assertion of obviousness without this analysis is legally insufficient.

QUIZ

Which of the following is NOT one of the four Graham factors?

- (A) Scope and content of the prior art
- (B) Differences between the prior art and the claims
- (C) Whether the invention is commercially successful
- (D) Level of ordinary skill in the art

Rule 2: KSR and the Rejection of a Rigid TSM Test (§2141)

PLAIN ENGLISH

Before **KSR v. Teleflex**, some courts required a rigid "teaching, suggestion, or motivation" (TSM) to combine references before finding obviousness. KSR rejected a rigid, formalistic TSM requirement in favor of a flexible, common-sense approach — an explicit teaching/suggestion/motivation is still one valid way to show obviousness, but it's not the only way; combining familiar elements according to known methods to yield predictable results can be obvious even without an explicit textual suggestion.

EXAMPLE

Combining a known pressure sensor with a known accelerator pedal in a predictable way — where each component functions exactly as it does elsewhere and yields an entirely predictable result — can be found obvious under KSR's common-sense reasoning, even if no single reference explicitly suggests making that combination.

QUIZ

Under **KSR v. Teleflex**, is an explicit teaching, suggestion, or motivation to combine references required to establish obviousness?

- (A) Yes, it's always required
- (B) No — TSM is one valid rationale among several flexible, common-sense approaches
- (C) Yes, but only for mechanical inventions
- (D) No, obviousness can never be based on TSM after KSR

Rule 3: Analogous Art Requirement (§2141.01(a))

PLAIN ENGLISH

Only **analogous art** may be relied on for an obviousness rejection — art that is either (a) from the same field of endeavor as the claimed invention, or (b) reasonably pertinent to the particular problem the inventor was trying to solve, even if from a different field. Art from an unrelated field solving an unrelated problem generally can't be combined into an obviousness rejection.

EXAMPLE

A reference about designing bicycle suspension systems could be analogous art for a claimed motorcycle suspension (same field), or even for an unrelated claimed office chair mechanism IF the reference is reasonably pertinent to the specific problem of absorbing shock the chair inventor was solving — but a reference about recipe formulation would not be analogous art for either.

QUIZ

A claimed invention concerns a novel shock-absorbing bicycle seat post. Which reference is most clearly analogous art?

- (A) A reference on unrelated software algorithms
- (B) A reference on shock-absorbing suspension systems for a different vehicle
- (C) A reference on culinary techniques
- (D) A reference on textile dyeing methods

Rule 4: Secondary Considerations / Objective Evidence of Non-Obviousness (§2145)

PLAIN ENGLISH

Applicants can rebut an obviousness rejection with objective evidence such as: commercial success (tied by nexus to the claimed features), long-felt but unsolved need, failure of others, unexpected results, copying by competitors, and industry praise/skepticism overcome. This evidence must be considered by the examiner, but it must have a **nexus** — a real connection — to the claimed invention's features, not just correlate with the product generally (e.g., due to marketing).

EXAMPLE

A product incorporating the claimed feature becomes a bestseller, but the applicant's evidence shows the sales boost was driven almost entirely by an unrelated marketing campaign, not the claimed feature. Because there's no nexus between the claimed feature and the commercial success, this evidence carries little weight against obviousness.

QUIZ

An applicant argues commercial success rebuts an obviousness rejection. What must the applicant show for this evidence to carry weight?

- (A) Only that the product sold well
 - (B) A nexus between the commercial success and the specific claimed features
 - (C) That a competitor also makes the product
 - (D) That the product is expensive
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Rule 5: Prima Facie Obviousness & Combining/Modifying References (§2143)

PLAIN ENGLISH

Examiners establish a **prima facie case** of obviousness by articulating a reason a person of ordinary skill would have been motivated to combine or modify prior art references to arrive at the claim, with a reasonable expectation of success. Common rationales include: combining familiar elements per known methods for predictable results, simple substitution of one known element for another, and applying a known technique to a similar device to improve it in the same way.

EXAMPLE

Reference A discloses a known widget missing feature X; Reference B discloses feature X used in a similar context for the same purpose. An examiner can reasonably articulate that substituting/adding B's feature X into A's widget would have been obvious as a simple, predictable substitution with an expected benefit.

QUIZ

What must an examiner articulate to establish a prima facie case of obviousness when combining two references?

- (A) Nothing beyond identifying both references
 - (B) A reason a skilled artisan would combine them, with a reasonable expectation of success
 - (C) That the references are from the same inventor
 - (D) That both references were cited by the applicant
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. An examiner rejects a claim as obvious, citing two references but giving no explanation for why they'd be combined. Is this rejection sufficient?

- (A) Yes, citing prior art is enough
- (B) No — a reasoned rationale for combining is required to establish a prima facie case
- (C) Yes, if both references are analogous art
- (D) No, because obviousness requires three or more references

2. Applicant presents evidence that their product was praised in the industry as solving a problem others had failed to solve for years. This is evidence of:

- (A) Anticipation
- (B) A secondary consideration (long-felt need / failure of others) supporting non-obviousness
- (C) Lack of enablement
- (D) Improper claim construction

3. Is an obviousness rejection legally sound if the only articulated rationale is "it would have been obvious to try"?

- (A) Never sufficient under any circumstances
- (B) Can be sufficient where there was a finite number of identified, predictable solutions and a reasonable expectation of success
- (C) Always sufficient regardless of context
- (D) Only applies to chemical compounds

4. A reference from an entirely unrelated field, addressing an unrelated problem, is cited against a claim. Is this proper analogous art?

- (A) Yes, any prior art can be combined
- (B) No — it must be from the same field or reasonably pertinent to the specific problem solved
- (C) Yes, if it was published before the effective filing date
- (D) No, only patents count as analogous art, not publications

5. True or False: After KSR, an examiner can never rely on an explicit teaching, suggestion, or motivation to combine references.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- Four **Graham factors**: scope/content of prior art, differences from claims, level of ordinary skill, secondary considerations.
- **KSR** rejected a RIGID TSM requirement — TSM still valid, just not mandatory; common-sense/predictable-results reasoning also works.
- **Analogous art** = same field OR reasonably pertinent to the specific problem solved.
- Secondary considerations need a **nexus** to the claimed features to carry weight.
- Prima facie obviousness requires an **articulated rationale** for combining/modifying references, not a bare citation.
- "Obvious to try" can work post-KSR only with a **finite number of predictable solutions** and reasonable expectation of success.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: The Graham Factors (§2141)

Which of the following is NOT one of the four Graham factors?

Answer: C

Commercial success is a type of secondary consideration (subset of factor 4), not a standalone Graham factor itself — factor 4 is broader ("secondary considerations") and commercial success is just one example of evidence within it.

Rule 2: KSR and the Rejection of a Rigid TSM Test (§2141)

Under KSR v. Teleflex, is an explicit teaching, suggestion, or motivation to combine references required to establish obviousness?

Answer: B

KSR didn't eliminate TSM — it eliminated the RIGID requirement that TSM be the only path to obviousness. TSM remains available as one rationale among several under the more flexible modern approach.

Rule 3: Analogous Art Requirement (§2141.01(a))

A claimed invention concerns a novel shock-absorbing bicycle seat post. Which reference is most clearly analogous art?

Answer: B

Even from a different vehicle, a shock-absorption reference is reasonably pertinent to the specific problem the seat-post inventor is solving — squarely analogous art. The other choices share neither field nor problem relevance.

Rule 4: Secondary Considerations / Objective Evidence of Non-Obviousness (§2145)

An applicant argues commercial success rebuts an obviousness rejection. What must the applicant show for this evidence to carry weight?

Answer: B

Secondary-consideration evidence is only persuasive if there's a demonstrated connection (nexus) between the success and the claimed invention itself — success attributable to marketing, brand, or unclaimed features doesn't rebut obviousness.

Rule 5: Prima Facie Obviousness & Combining/Modifying References (§2143)

What must an examiner articulate to establish a prima facie case of obviousness when combining two references?

Answer: B

A bare citation of two references isn't enough — the examiner must give an articulated reason for the combination and a reasonable expectation of success, or the rejection is legally deficient.

Chapter Close-Out Quiz

1. (B)

Bare citation without an articulated rationale for combining fails to establish a prima facie case — this is one of the most common formal defects in obviousness rejections tested on the exam.

2. (B)

Praise for solving a long-standing problem others failed to solve is a textbook secondary consideration supporting non-obviousness, assuming a nexus to the claimed features.

3. (B)

"Obvious to try" can support obviousness post-KSR specifically when there's a finite, identified set of predictable solutions with a reasonable expectation of success — not as a blanket, low-effort rationale.

4. (B)

The analogous art requirement limits examiners to art that's field-relevant or problem-relevant; an unrelated reference addressing an unrelated problem can't support the rejection.

5. (B) False

KSR loosened the rigid TSM requirement but did not eliminate TSM as a valid rationale — it remains one of several available approaches.